

Court No. - 21

Case :- WRIT - C No. - 4602 of 2018

Petitioner :- Sudhir Baboo

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Shah Nawaz Akhtar, Ajendra Kumar

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Petitioner has challenged the recovery certificate issued by the respondent No.2 to recover the outstanding sum of Rs.2,76,556/-.

Learned counsel for the petitioner states that he was wrongly issued electricity bill by the respondents and he has made various representations in this regard but the respondents have not taken any action and now the outstanding amount is being sought to be recovered. Petitioner is aggrieved and is disputing the bills. The remedy available to the petitioner is under Section 6.5 of the U.P. Electric Supply Code, 2005 to make an application in this regard before the competent authority.

Sri Shyam Singh holding brief of Sri Kapil Dev Singh Rathore, who has accepted notice on behalf of respondent No.2, fairly states that in case any complaint made by the petitioner is pending or even if the petitioner makes a fresh application before the competent authority, the authority shall proceed and decide the same in accordance with law.

Considering the facts and circumstances, writ petition stands finally disposed of by providing that the petitioner may make an appropriate application under Clause 6.5 of the U.P. Electricity Supply Code before the authority concerned along with a certified copy of this order within a period of two weeks from today with direction to the said authority that in case any such application is filed, he shall consider and decide the same in accordance with law within a period of six weeks from the date of making of the application. For a period of eight weeks from today or till disposal of complaint filed by the petitioner, no coercive actions shall be taken in pursuance to the impugned recovery. In case no complaint is filed within the stipulated period, the respondents are free to adopt the coercive measures provided for in law to recover the amount.

Order Date :- 5.2.2018

Ashish Tripathi